

**IN THE UNITED STATES DISTRICT COURT
FOR THE MIDDLE DISTRICT OF ALABAMA
SOUTHERN DIVISION**

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2007 DEC 19 A 9:38

JACKIE TRAWICK,

Plaintiff,

Vs.

RONNIE EUGENE RUSS,

Defendant.

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Civil Action Number:

1:07cv1101-mht

DEMAND FOR JURY TRIAL

COMPLAINT

COMES NOW, the Plaintiff in the above styled cause, Jackie Trawick, and as a basis for the relief hereinafter demanded, says as follows; to-wit:

NATURE OF THE ACTION

1. This is an action for personal injuries resulting from a motor vehicle accident which occurred on or about March 23, 2007 on U.S. Highway 231 at or near the intersection of Marley Mill Road in Ozark, Dale County, Alabama. Plaintiff seeks compensatory and punitive damages.

PARTIES AND JURISDICTION

2. The Plaintiff, Jackie Trawick, an individual, sustained injuries and damages in the accident of March 23, 2007 and was at all times relevant to the allegations made in this Complaint a citizen and resident of Ozark, Dale County, Alabama. The Plaintiff's address is 228 Merioneth Drive, Ozark, Alabama 36360.

3. Defendant, Ronnie Eugene Russ, is a citizen and resident of Chipley,

SCANNED
08/29/07

Washington County, Florida. The Defendant's address is 1998 Old Bonifay Road, Chipley, Florida 32428.

4. The amount in controversy, without interest and costs, exceeds the sum or value specified by 28 U.S.C. §1332.

COUNT I

5. On or about March 23, 2007, Plaintiff, Jackie Trawick, was operating a 1995 Oldsmobile automobile on the U.S. Highway 231 at or near the intersection of Marley Mill Road in Ozark, Dale County, Alabama. U.S. Highway 231 and Marley Mill Road are public highways in Ozark, Dale County, Alabama.

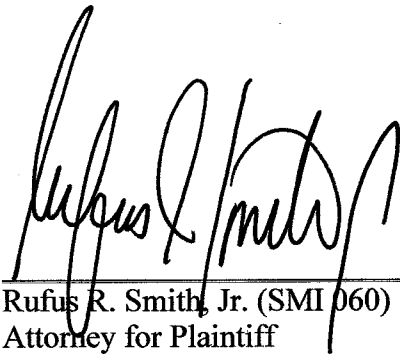
6. At the aforesaid time and place the Plaintiff, Jackie Trawick, was seriously injured when the vehicle she was operating was struck by a 2005 Nissan pickup truck being operating by Defendant, Ronnie Eugene Russ, who so negligently, willfully and/or wantonly operated his vehicle so as to cause or allow it to run into, upon or against, the vehicle being operated by the Plaintiff, Jackie Trawick, and such negligent, willful and/or wanton conduct of the Defendant, Ronnie Eugene Russ, was a proximate cause of Plaintiff's injuries and damages hereinafter described.

7. As a proximate result of the aforesaid negligent, willful and/or wanton conduct of the Defendant, the Plaintiff, Jackie Trawick, suffered the following injuries and damages; to-wit:

Plaintiff, Jackie Trawick, suffered a severe aggravation and/or exacerbation of an injury and/or condition to her back which existed at the time of the accident made the basis of Plaintiff's Complaint. She was required to undergo extensive diagnostic testing and was required to undergo extensive physical therapy in and about an effort to treat her injuries resulting from the aggravation or exacerbation of her preexisting back problems. Plaintiff

was caused to undergo extensive medical treatment including, but not limited to, physical therapy, diagnostic testing including x-rays and a lumbar myelogram; lumbar epidural steroid injections; hospitalizations at the emergency room at Dale Medical Center in Ozark, Alabama, and hospitalizations at Flowers Hospital, in Dothan, Alabama and the Southeast Alabama Pain Management Center at the Southeast Alabama Medical Center in and about an effort to treat and cure her injuries and damages; and as a result of her injuries and the aggravation of the same will be caused to undergo doctor, hospital and medical treatment in the future. She has suffered and continues suffer great physical pain and mental anguish for which she has received medical treatment and will so suffer in the future. She has sustained a permanent impairment to her body as a result of her injuries. She has been caused to suffer an aggravation of a pre-existing condition. She has been caused to expend sums of money for doctor, hospital, drug and therapy treatments in and about an effort to cure her injuries and upon information and belief will be caused to expend great sums of money in the future for medical treatment. The Plaintiff seeks compensation for all the hereinabove enumerated compensatory injuries and damages, past and future.

WHEREFORE, Plaintiff, Jackie Trawick, demands judgment against the Defendant, Ronnie Eugene Russ, for compensatory and punitive damages in the amount of \$300,000.00 and costs.



Rufus R. Smith, Jr. (SMI 060)

Attorney for Plaintiff

Rufus R. Smith, Jr. & Associates

Post Office Drawer 6629

Dothan, Alabama 36302

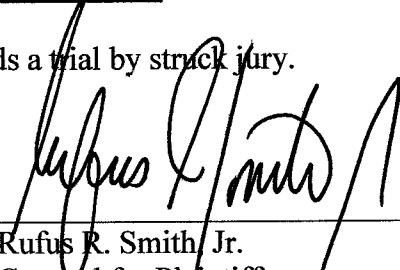
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JURY DEMAND

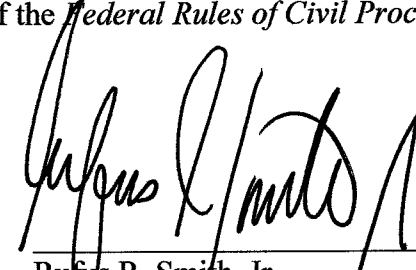
Plaintiff demands a trial by struck jury.



Rufus R. Smith, Jr.
Counsel for Plaintiff

Request for Certified Mail Service by Clerk

The Plaintiff hereby requests that the clerk serve the Defendant by Certified Mail, return receipt requested pursuant to Rule 4.1 (c) of the *Federal Rules of Civil Procedure*.



Rufus R. Smith, Jr.
Of Counsel for Plaintiff

Please serve Defendant via Certified Mail with return receipt requested at:

Ronnie Eugene Russ
1998 Old Bonifay Road
Chipley, Florida 32428

DUPLICATE

Court Name: U S DISTRICT COURT - AL/M
Division: 2
Receipt Number: 4602002026
Cashier ID: brobinso
Transaction Date: 12/19/2007
Payer Name: RUFUS R SMITH

CIVIL FILING FEE
For: RUFUS R SMITH
Case/Party: D-ALM-1-07-CV-001101-001
Amount: \$350.00

CHECK
Check/Money Order Num: 16379
Amt Tendered: \$350.00

Total Due: \$350.00
Total Tendered: \$350.00
Change Amt: \$0.00

TRAWICK V. RUSS